

ROUND TABLE MEETING

BRIEF FOR REPRESENTATION

Prepared for Wilbur William Matthee
Self-Represented Complainant / Whistleblower
Without Prejudice Engagement

AfroCentric Investment Corporation Limited
Proposed meeting date: no later than 27 June 2026

17 June 2026

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1. Executive Summary – Why This Meeting Matters

This meeting is a good-faith, “without prejudice” engagement intended to secure a clean break and full closure for both parties. The objective is to transition away from active litigation across multiple forums and establish a fair, mutually beneficial settlement framework that allows both sides to move forward productively.

The stakes are focused on achieving a balanced resolution:

For the Whistleblower	For the Employer
Financial Stabilization – Resolution of immediate destitution and outstanding liabilities.	Total Operational Closure – Complete withdrawal of all active complaints, litigation tracks, and regulatory oversight markers.
Statutory Correction – Unlocking of rightful UIF benefits via a corrected UI-19 and updated Certificate of Service.	Risk Elimination – Complete prevention of further public exposure, parliamentary tabling, or escalating litigation costs.
Professional Restoration – Re-registration with SANC and clean professional record.	Mutual Peace – A permanent, comprehensive settlement agreement with strict reciprocal confidentiality.

This meeting represents a genuine opportunity for both parties to execute a fair, just, and equitable settlement before further formal processes are initiated.

2. The Complainant’s Position – Core Principles

2.1 The Protected Disclosures & Settlement Posture

The historical context involves various protected disclosures and statutory disputes raised under the Protected Disclosures Act 26 of 2000 and associated labour frameworks.

While the validity of these initial reports is documented, the complainant’s primary objective at this stage is not prolonged adjudication, but mutual resolution. Provided a just and equitable financial settlement is reached, the complainant is fully amenable to a comprehensive, mutual release. This includes the formal retraction of historical complaints and full cooperation with the firm to formally close out these tracks across all active forums.

2.2 The Interdict Must Be Addressed

The interim interdict (Case 2026-086906) was obtained by concealment of the answering affidavit – a fraud on the court. It restrains the complainant from disclosing information to trade unions and regulators – overriding Section 9 of the PDA. It has been extended to 1 March 2027 – almost one year.

Any resolution must address the interdict. The complainant cannot accept a settlement that leaves the gag order in place while he is destitute and silenced.

2.3 The Complainant's Destitution Is a Direct Consequence of the Employer's Conduct

The complainant is homeless (since 2 April 2026), without running water (since January 2026), deregistered by SANC (could not pay R870), and suffering from severe depression and PTSD (occupationally caused). His destitution is the direct consequence of the unlawful salary deduction, constructive dismissal, and the suppression of exit documents (false UI-19, incorrect Certificate of Service).

Any settlement must provide immediate relief – not only future compensation, but restoration of access to UIF benefits, correction of statutory documents, and support for professional reinstatement.

3. The Employer's Position – Anticipated Arguments and Responses

3.1 "The Matter Is Before the Courts"

Response: The parliamentary submission concerns governance failures and regulatory capture – matters no court is adjudicating. The Labour Court will decide the employment dispute. Parliament will decide why 15 institutions failed. These are separate and complementary.

3.2 "The Whistleblower Is Extorting the Company"

Response: The quantified damages schedule (R7,307,642.72) was provided at the employer's own request (Deney's 15 April 2026 letter complained the demand was "unquantified"). A damages schedule is not extortion – it is a standard legal practice. The employer's characterisation of this as extortion was used to obtain an ex parte interdict on a false premise.

3.3 "The Interdict Is Lawful and Must Be Respected"

Response: The interdict was obtained after the employer's attorneys concealed the answering affidavit – a fraud on the court. The interdict overrides Section 9 of the PDA. The complainant will not accept a settlement that leaves the gag order in place.

3.4 "The Parliamentary Submission Is Contempt of Court"

Response: Parliament is not "the public at large." Section 56 of the Constitution guarantees the right to petition Parliament. The employer's threat of contempt for petitioning Parliament is legally untenable and will be raised before the Legal Practice Council.

4. The Complainant's Negotiating Position

4.1 Items Open for Amicable Retraction / Withdrawal

In the spirit of fairness and achieving total closure, the complainant is fully prepared to withdraw or stop the following tracks upon execution of a signed agreement:

- **The Parliamentary Track:** The submission of further evidence to the National Assembly will be immediately and permanently stopped. The complainant is amenable to withdrawing the oversight report entirely, ensuring no further regulatory or legislative escalation occurs.
- **Active Litigation Tracks:** All current litigation tracks across the various 9 forums will be formally retracted and withdrawn by the firm/representative as part of the settlement terms.
- **Regulatory/Institutional Filings:** Any outstanding complaints or referrals to regulatory bodies will be formally closed out or withdrawn to ensure zero ongoing exposure for the employer.

4.2 Core Requirements for a Just and Equitable Settlement

To facilitate a complete walk-away, the employer must provide reciprocal fairness on the following operational items:

- **The Quantum of Damages:** A fair, adjusted financial settlement that addresses historical salary disruptions, immediate relocation/housing needs, and professional stabilization.
- **Correction of Statutory Documents:** Immediate delivery of a corrected UI-19 form (reflecting Constructive Dismissal to unlock benefits) and a corrected Certificate of Service (accurately reflecting the NQF 8 role of Case Manager / Specialist Nurse).
- **Discharge of the Interdict:** A formal, mutual agreement to discharge the interim High Court interdict (Case No. 2026-086906), replacing it with standard, balanced, reciprocal confidentiality clauses within the final settlement agreement.

4.3 Conditions for the Settlement Agreement

The Clean Break Principle: The final settlement must be a standard, comprehensive corporate settlement letter signed by authorized representatives of both parties. It will contain a strict, bilateral non-disclosure and non-disparagement clause. Once signed and the initial financial tranche is cleared, both parties walk away with their reputations intact and no further obligations or claims against one another.

5. The Parliamentary Track – Settlement Alignment

The complainant has prepared a Consolidated Forensic Oversight Report for the National Assembly. Its progress is now directly and transparently tied to the outcome of this settlement engagement:

If Resolution Is Reached	If No Resolution Is Reached
Complete Withdrawal: The submission of further evidence is immediately halted, and the oversight document is formally withdrawn from the pipeline.	Process Proceeds: The existing oversight tracking continues along its standard procedural trajectory.
Permanent Cessation: The complainant commits to zero further engagement on this matter with legislative or regulatory oversight bodies.	Escalation: The multi-forum tracks remain active by default due to a lack of an alternative closure mechanism.

This is a genuine, good-faith alignment between settlement outcomes and parliamentary engagement, offered to give the employer the clarity and certainty needed to close out all regulatory and oversight exposure.

6. Key Documents to Refer to During the Meeting

Document	Purpose
Root Cause Analysis (VICT1) – Gexus-DMS integration gap	Proves the protected disclosure was valid
Payslip (PS2) – 40.47% deduction	Proves BCEA Section 34(2) violation
CRO suppression email (18 Dec 2025)	Proves active suppression of risk report
Deneys 4 June 2026 letter – threat of contempt	Proves attempt to block parliamentary oversight
“Good luck to you then” email (2 June 2026)	Proves bad faith litigation conduct
Consolidated Forensic Oversight Report	The parliamentary submission – complete and ready for tabling

7. The Complainant’s Objectives for the Meeting

1. Establish the employer’s genuine intent – is this a good faith attempt at resolution, or another attrition tactic?
2. Secure immediate relief – UIF access, correction of statutory documents, and basic financial support to prevent further destitution.
3. Address the interdict – the gag order must be discharged or significantly narrowed.
4. Determine whether a comprehensive settlement is possible – if not, the parliamentary submission will proceed.

The complainant is not attending the meeting to “negotiate away” his rights. He is attending to determine whether the employer is prepared to offer a resolution that addresses the systemic harms documented in this report.

8. Escalation Pathway – If the Meeting Fails

If the employer does not accept the preconditions, or if the meeting is not convened by 27 June 2026, or if the meeting does not result in a meaningful resolution:

5. The parliamentary submission will be tabled immediately.
6. The Unilateral Pre-Trial Minute will proceed – the employer’s bad faith litigation conduct will be placed before the Labour Court.
7. The Legal Practice Council complaint will be finalised – regarding the concealment of the answering affidavit, the threat of contempt for petitioning Parliament, and the bad faith settlement tactics.
8. The perjury referral will be submitted to the NPA – regarding the contradictory sworn statements across courts.
9. The IPID complaint will be submitted – regarding the Delft Police Station officer who falsely claimed to be the station commander.

9. Conclusion – A Fair and Just Path Forward

The complainant is entering this round table meeting with a genuine, transparent desire for peace, fairness, and mutual closure. The aggressive litigation postures of the past months can be completely dissolved in a single afternoon, provided the employer meets the complainant with an equally fair, just, and equitable settlement offer.

By correcting the statutory documents (UI-19 and Certificate of Service), resolving the interdict, and providing a bounded financial settlement, the employer secures total risk elimination and permanent corporate silence.

The complainant is ready to sign the agreement, shake hands, and permanently walk away.

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This brief is for the complainant’s personal use during the round table meeting. It should not be shared with the employer or its representatives unless explicitly authorised.

Without Prejudice

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